

## 24STCV33658 24STCV33658

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Fabian v. FCA US LLC et al.,

### TENTATIVE RULING

The demurrer is SUSTAINED in part, with leave to amend. The Motion to Strike is GRANTED, with leave to amend.

#### Introduction

On December 19, 2024, Plaintiffs filed a Complaint arising out of Plaintiffs' warranty contract with Defendant FCA US, LLC ("FCA") regarding a 2020 Jeep Cherokee, VIN 1C4PJLDB5LD573899 ("Subject Vehicle").

On November 20, 2025, Plaintiff filed their First Amended Complaint.

On December 22, 2025 Defendants filed the instant Demurrer and Motion to Strike

to Plaintiff's First Amended Complaint ("FAC")

On August 20, 2026 Plaintiff filed an Opposition to the instant motion.

On September 11, 2026 Defendants filed a Reply.

#### Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Declaration of Armando Lopez, executed on December 22, 2025, sets forth Defendant's counsel meet and confer efforts and attempts to resolve the disputes informally by telephone. The Court finds that the parties conferred as required by Code

of Civil Procedure section 430.41

## Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

## Fifth Cause of Action: Fraudulent Inducement – Concealment

### Duty to Disclose

Defendant argues that Plaintiffs have not pled a transactional relationship between FCA and Plaintiffs which gives rise to a duty to disclose.

The California Supreme Court "has described the necessary relationship giving rise to a duty to disclose as a 'transaction' between the plaintiff and defendant." (BiglerEngler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 311.) Specifically, "[i]n transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (Ibid.) For example, "a duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement." (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.)

Here, the Court is not persuaded that FCA's written warranty, without more, is sufficient to impose a duty to disclose upon FCA where Plaintiff has not alleged facts indicating any "direct dealings" between the parties. (FAC, ¶ 7.) "Under California law, manufacturer warranties that accompany the sale of a vehicle without regard to the substantive terms of the sale contract between the buyer and the dealer are independent of the sale contract." (Davis v. Nissan North America, Inc. (2024) 100 Cal.App.5th 825, 837, emphasis added.)

Although Plaintiffs' Opposition contends that Plaintiffs have pled a buyer-seller relationship, that "Plaintiffs purchased the Vehicle from FCA's authorized dealership... and FCA's authorized dealerships act as FCA's agents for purposes of conveying FCA's information to purchasers" these facts are not reflected on the face of the First Amended Complaint itself. (Opp., at 11:19-21) For example, Plaintiff never alleges that FCA financed or controlled any sale, or otherwise had a direct interest in the sale of the Vehicle to Plaintiff. Further, while Plaintiff alleges FCA concealed information in its advertising "materials" (FAC, ¶¶ 91-92), Plaintiff has not alleged any factual detail identifying these materials such that it can be inferred that the materials were anything more than communications to the public at large. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 41 ("Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large."))

While courts do consider the existence of an express warranty in evaluating the

duty to disclose, Plaintiffs have not set forth any legal authority to indicate that a written warranty, standing alone, constitutes the type of "direct dealings" necessary for such a duty, particularly where there are no facts alleging Plaintiffs purchased the

Vehicle from an FCA-authorized dealership or other FCA sales representatives, or that FCA's agents directly solicited business from Plaintiff. (Cf. *Dhital v. Nissan North America, Inc.*, (2022) 84 Cal.App.5th 828, 844 (holding a transactional relationship is sufficiently pled for the purposes of a demurrer where "plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers."))

In other words, although Plaintiffs argue that sales by intermediaries do not necessarily disrupt the "transactional relationship" between a manufacturer and a consumer (citing *Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094, 1132), Plaintiffs have not pled any factual detail to support an inference that FCA itself was selling through a dealership, as Plaintiffs contend in their Opposition. (Opp., at 11.) At present, the FAC is completely devoid of facts clarifying the circumstances through which Plaintiffs acquired the Vehicle. Plaintiffs must allege additional facts to support the existence of a transactional relationship with FCA.

A duty to disclose has not been pled.

The demurrer is SUSTAINED with leave to amend on this ground.

#### Specificity

Assuming, arguendo, that Plaintiffs had successfully pled a transactional relationship with FCA, Plaintiffs must still plead the circumstances of fraudulent concealment with particularity. (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal.5th 1, 43–44.)

Defendant argues that Plaintiffs have not pled this cause of action with the requisite specificity. Namely, Defendant argues that Plaintiffs (1) failed to identify by name any person who made any alleged omissions when he purchased the Subject Vehicle; (2) failed to allege the general point at which the omitted facts should or could have been revealed; and (3) failed to allege the materials that Plaintiffs reviewed and relied upon in purchasing the Subject Vehicle.

Defendant relies on the general rule for pleading fraud against a corporation, which requires a plaintiff to allege the identity of the speaker, their authority, to whom they spoke, what they said, and when it was said. (See, e.g., *Tarmann v. State Farm Mut. Auto Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) However, this rule is inapplicable to a claim of fraudulent concealment. (*Alfaro v. Community Housing Improvement System & Planning Association, Inc.* (2009) 171 Cal.App.4th 1356, 1384 ("How does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?").) Instead, such details, in the context of a fraudulent concealment claim, "are properly the subject of discovery, not demurrer." (Id. at 1384-85.)

Here, the Court agrees that Plaintiffs do not plead the fraudulent concealment claim with the requisite particularity, though only for reasons two and three. As discussed above, the Tarmann factors FCA contends Plaintiff omitted – the identity of the speaker, their authority, to whom they spoke, and what was said and when – do not govern a claim sounding in concealment rather than affirmative misrepresentation. (*Alfaro*, supra, 171 Cal.App.4th at 1384.) The claim is instead deficient because the FAC fails to plead the factors required for a concealment claim under *Rattagan*. Although Plaintiff alleges that FCA had superior knowledge of the defect through pre-production and post-production testing data; early consumer complaints about the Transmission Defect; aggregate warranty data; testing conducted in response to these complaints; as well as warranty repair and part replacements data, (FAC ¶ 89) the pleading does not identify which advertisements, marketing materials, or representations Plaintiffs reviewed, when they reviewed them, or how those materials were prepared or disseminated by FCA as opposed to the dealership. Further, Plaintiffs do not allege the general point at which disclosure should or could have been made.

Further, while Plaintiffs allege that FCA's concealment induced them to purchase the vehicle and that they would not have done so had they known of the defect (FAC ¶¶ 90-91), the FAC does not allege any facts establishing Defendant's intent to defraud.

The demurrer is SUSTAINED in part on this ground, with leave to amend.

#### Sixth Cause of Action: Negligent Repair

Defendants demur to the sixth cause of action in the FAC for Negligent Repair against Los Angeles Chrysler Dodge Jeep Ram ("LA Jeep") on the grounds that the Economic Loss Rule bars Plaintiffs' claim.

To plead a claim for negligent repair, a plaintiff must allege the elements of negligence. "Ordinarily, negligence may be pleaded in general terms and the plaintiff need not specify the precise act or omission alleged to constitute the breach of duty." (Lopez v. S. Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795; Crouse v. Brobeck (1998) 67 Cal.App.4th 1509, 1532 (a plaintiff need only state what occurred, and generally that the acts were negligently done, but "need not state the specific act or omission constituting negligent conduct.")). Likewise, causation may be alleged "succinctly and generally, unless the pled facts 'do not naturally give rise to an inference of causation...'" (Bockrath v. Aldrich Chemical Co., Inc. (1999) 21 Cal.4th 71, 78, internal citations omitted.)

In order to plead around the economic loss rule, a party must plead the existence of a duty that arises independent of any contractual duty and independent injury, other than economic loss, that arises from the breach of that duty. (Robinson Helicopter, supra, 34 Cal.4th at 991, 988-91.) "In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.)

Here, Plaintiff's negligent repair claim is brought against LA Jeep (not FCA). Plaintiff allegedly delivered the Vehicle to LA Jeep for repairs "on at least one occasion." (FAC, ¶ 96.) Plaintiff generally alleges that LA Jeep "owed a duty to Plaintiff to use ordinary care and skill in storage, preparation, and repair" of the Vehicle "in accordance with industry standards." (Id., ¶ 97.) Indeed, "[a]ny individual, partnership, corporation, association, or other legal relationship which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner." (Civ. Code, § 1796.5.) Thus, Plaintiff has sufficiently pled an independent duty.

However, Plaintiff's negligent repair claim is devoid of factual detail clarifying how LA Jeep acted negligently. Plaintiff alleges LA Jeep breached its duty to Plaintiff "by failing to properly store, prepare and repair [the Vehicle] in accordance with industry standards." (Id., ¶ 98.) Plaintiff further alleges LA Jeep's "negligent breach of its duties owed to Plaintiff was a proximate cause of Plaintiff's damages." (Id., ¶ 99.) Plaintiffs' opposition mistakenly alleges that the FAC "need only allege the ultimate facts constituting the cause of action, not the evidentiary facts by which those ultimate facts will be proven." (Opp., at 12:8-9). Plaintiff must at least include facts indicating what is alleged to have occurred with enough factual detail to put LA Jeep on notice of the claim brought against it. For example, the FAC is vague and uncertain as to the nature or type of storage and/or repairs that LA Jeep was supposedly hired to perform on the Vehicle, and fails to allege how LA Jeep conduct deviated from industry norms. Additionally, the FAC does not allege any facts indicating what type of damages were sustained by Plaintiff. Without more factual detail as to what LA Jeep allegedly did or failed to do, it cannot be inferred that its negligent acts or omissions caused Plaintiff to suffer a particular injury, economic or otherwise. Thus, while the Economic Loss Rule may not necessarily bar Plaintiffs' Negligent Repair claim, Plaintiffs have not adequately pled their cause of action for negligent repair.

The demurrer to the sixth cause of action is SUSTAINED with leave to amend.

#### Motion to Strike

Defendants move to strike Plaintiffs' prayer for punitive damages from the Complaint on the grounds the Complaint fails to state facts sufficient to support the recovery of punitive damages.

Civil Code § 3294(a) authorizes the recovery of punitive damages in non-contract cases “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice...”

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294(c)(1)-(3).)

As reviewed above, the Court finds that Plaintiffs’ fraud-based claim is not sufficiently pled to survive general demurrer. The Court also found that Plaintiffs’ negligent repair claim is devoid of factual detail clarifying how LA Jeep acted negligently.

Accordingly, the Court GRANTS Defendant’s Motion to Strike Plaintiffs’ punitive damage request based on Plaintiffs’ Fraudulent Concealment claim and Negligent

Repair claim. Because the Court has allowed Plaintiffs leave to amend to address the issues in the fifth and sixth causes of action and punitive damages may be awarded upon properly pled fraud and negligent repair claims (See Civil Code § 3294), the rulings as to Plaintiffs’ fifth and sixth causes of action are without prejudice – Plaintiffs may plead punitive damages upon amendment of their fifth and sixth causes of action.

Defendant’s Motion to Strike Punitive Damages from Plaintiffs’ First Amended Complaint is GRANTED as to the fifth and sixth causes of action for Negligent Repair and Fraudulent Inducement – Concealment, with leave to amend.

## Conclusion

The demurrer is SUSTAINED in part, with leave to amend. The Motion to Strike is GRANTED, with leave to amend.

Plaintiffs shall file their Amended Complaint within 20 days.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at [SMCDept224@lacourt.org](mailto:SMCDept224@lacourt.org) indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.